

26CMCV00899 26CMCV00899

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-09-10

Motion: DEFENDANTS' MOTION TO STRIKE

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Case Number: 26CMCV00899 Hearing Date: September 10, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

ALEJANDRA SANCHEZ,

Plaintiff,

vs.

CJ

LOGISTICS AMERICA, LLC, et al.,

Defendants.

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CASE NO: 26CMCV00899

[TENTATIVE]

ORDER RE: DEFENDANTS' MOTION TO STRIKE

Dept.

A

DATE:

September 10, 2026

TIME:

8:30 A.M.

Complaint:

05/15/2026

Trial:

None set

MOVING

PARTY: Defendants CJ

Logistics America, LLC and Eugene Smith

RESPONDING

PARTY: None

1. Background

This is a motor vehicle

collision action. Plaintiff Alejandra Sanchez ("Plaintiff") alleges that on December 3, 2024, Defendants CJ Logistics America, LLC and Eugene Smith (collectively, "Defendants") negligently operated, drove, controlled, maintained, and/or managed their vehicle so as to collide with Plaintiff's vehicle, causing Plaintiff personal injury and property damage.

2. Discussion

Defendants

move to strike punitive damages allegations from the complaint. Defendants contend that the complaint lacks factual allegations of oppression, fraud, or malice, as is necessary to support a claim for punitive damages, and that the complaint fails to allege corporate managing agent liability. Plaintiff does not oppose this motion.

Any

party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code of Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

In

order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. (College. Hospital, Inc. v. Superior Court (1994) 8

Cal.4th 704, 721 (College Hospital).)∟These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. (Civ. Code, § 3294, subd. (a).)

“In

order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff. [Citations.]∟In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.∟[Citations.]∟In ruling on a motion to strike, courts do not read allegations in isolation.∟[Citation.]”∟(Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.)∟“The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages.∟[Citation.]∟Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.∟[Citation.]”∟(Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166.)

“Malice is

defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (College Hospital, supra, 8 Cal.4th at p. 725 [examining Civ. Code, § 3294, subd. (c)(1)].) “A conscious disregard of the safety of others may constitute malice within the meaning of section 3294 of the Civil Code. In order to justify an award of punitive damages on this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.”∟(Taylor v. Superior Court (1979) 24 Cal.3d 890, 895-896.)

“As amended to

include [despicable], the statute plainly indicates that absent an intent to injure the plaintiff, ‘malice’ requires more than a ‘willful and conscious’ disregard of the plaintiffs’ interests.∟The additional component of ‘despicable conduct’ must be found.”∟(College Hospital, supra, 8 Cal.4th at p. 725.)∟The statute’s reference to despicable conduct represents a “new substantive limitation on punitive damage awards.” (Ibid.)∟Despicable conduct is “conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.∟Such conduct has been described as ‘having the character of outrage

frequently associated with crime.' "¿(Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1287.)

The complaint

alleges that Defendant Eugene Smith operated Defendants' vehicle within the scope of his employment with Defendant CJ Logistics America, LLC while fatigued and using a cell phone, and that this conduct constituted malice or oppression.

(Compl. ¶ 50.) However, mere negligence in driving, such as failure to pay adequate attention to the road, is insufficient to establish malice or oppression. (See Dawes v. Superior Court (1980) 111 Cal.App.3d 82, 90.)

In order to establish malice, a plaintiff must plead facts showing that the defendant acted in such an outrageous and reprehensible manner that the jury could infer that they knowingly disregarded a substantial certainty of injury to others. (Ibid.) "Allegations of intoxication, excessive speed, driving with defective equipment of the running of a stop signal, without more, do not state a cause of action for punitive damages." (Ibid.)

Correspondingly, allegations of driving while fatigued and distracted by a cell phone, without more, do not state a cause of action for punitive damages.

As the

allegations of punitive damages against Defendant CJ Logistics America, LLC rely upon Defendant Eugene Smith's alleged conduct, punitive damages are unavailable against either of Defendants based on the facts as alleged in the complaint. The court need not analyze corporate managing agent liability. The court will therefore grant Defendants' motion to strike.

3. Conclusion

Based on the

foregoing, the court GRANTS Defendants' motion to strike punitive damages from the complaint.

Defendants are ordered to give notice.

IT IS SO ORDERED.

DATED: September 10, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court